

		<u>Motion to Deem Requests for Admission, Set One, Admitted</u> Plaintiff Bump moves for an order deeming Plaintiff's Requests for Admission, Set One, Nos. 1-39 <i>admitted</i> as to Defendant, Sergio Ramirez. Code of Civil Procedure section 2033.280 provides that if a party to whom requests for admission are directed fails to serve a timely response, the party waives any objection to the requests. The requesting party may also move for an order that the genuineness of documents and the truth of any matters specified in the requests be deemed admitted. (Code Civ. Proc. § 2033.280(a)-(b).) The court shall deem the matters admitted "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code Civ. Proc. § 2033.280(c).) Like Plaintiff's motion to compel responses to Requests for Production, Set One, Plaintiff's counsel provides that Plaintiff's Requests for Admissions, Set One was served on Defendant Ramirez on or about September 17, 2024, and that despite granting multiple extensions to provide responses and communicating with both Ramirez's original counsel and associated counsel, to date, i.e., January 15, 2026, Defendant Ramirez has not provided responses to these Requests for Production. (ROA 353, Declaration of Christopher L. Hendricks, ¶¶ 2-14, Exs. 1-12.) No opposition has been filed and it appears that Defendant Ramirez has not served a proposed response to Plaintiff's Requests for Admission, Set One. As such, Plaintiff's Motion to Deem Requests for Admission, Set One, Nos. 1-39 admitted as against Defendant Ramirez is GRANTED. Pursuant to Code of Civil Procedure section 2033.280(c), "[i]t is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated [the] motion." Plaintiff's motion to deem requests for admission admitted states, "To the extent any sanctions are awarded by the Court, Plaintiffs request that they be issued to one of the applicable trial lawyers associations operating in the area like Orange County Trial Lawyers Association ('OCTLA') or Consumer Attorneys of California ('CAOC')." (ROA 337, Motion, 4:15-18.) Plaintiff does not cite to any authority for sanctions being awarded to anyone but the party that incurred the reasonable fees/expenses. However, as a monetary sanction is mandated, the Court awards a \$50 monetary sanction against Defendant Ramirez, to be paid to Plaintiff's counsel within 30 days. Plaintiff to give notice of all motions.
8.	30-2023-01360493 Lopez vs. Right Time Transport, LLC	1. Case Management Conference 2. Motion for Terminating Sanctions 3. Order to Show Cause re: Failure to Appear Plaintiff, Albert Lopez, moves for an order for terminating sanctions as to Defendants, Right Time Transport, LLC and Andy Tran, and for an award of monetary sanctions against

Defendants, jointly and severally in the amount of \$1,560. The Motion is **DENIED, in part, GRANTED, in part.**

Terminating Sanctions

If a party fails to obey an order compelling answers to interrogatories or an order compelling a response, “the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010),” and “[i]n lieu of or in addition to that sanction, the court may impose a monetary sanction.” (Code Civ. Proc. §§ 2030.290(c) [interrogatories]; 2031.300(c) [requests for production].)

Additionally, the court may impose a terminating sanction against anyone engaging in conduct that is a misuse of the discovery process by an order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process, an order staying further proceedings by that party until an order for discovery is obeyed, an order dismissing the action, or any part of that action, of that party, or an order rendering a judgment by default against that party. (Code Civ. Proc. § 2023.030(d).)

Misuses of the discovery process include “[f]ailing to respond or to submit to an authorized method of discovery,” and disobeying a court order to provide discovery. (Code Civ. Proc. § 2023.010(d), (g).)

A court has broad discretion in selecting the appropriate penalty for a party’s refusal to obey a discovery order, and the trial court’s determination must be upheld absent an abuse of discretion. (*Lopez v. Watchtower Bible & Tract Society of New York, Inc.* (2016) 246 Cal.App.4th 566, 604 (“*Lopez*”).) “Despite this broad discretion, . . . the terminating sanction is a drastic penalty and should be used sparingly. [Citation.]” (*Ibid.*) “A trial court must be cautious when imposing a terminating sanction because the sanction eliminates a party’s fundamental right to a trial, thus implicating due process rights. [Citations.]” (*Ibid.*)

The discovery statutes “evinced an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.” (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992.) “Although in extreme cases a court has the authority to order a terminating sanction as a first measure [citations], a terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective [citations].” (*Lopez, supra*, 246 Cal.App.4th at pp. 604-605.)

“A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction. [Citation.]” (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279-280.)

Here, Plaintiff provides that on or about June 5, 2025, Plaintiff’s eight motions to compel discovery responses (four as to each Defendant) and two motions to deem facts admitted (one as to each Defendant) came on for hearing and were granted. The Court ordered Defendants to provide response to all discovery and pay sanctions within 30 days. (Declaration of Allison M. Schulman (“Schulman Decl.”), ¶ 10, Ex. 4.) Defendants failed to comply with the Court’s June 5, 2025, Order, and to date, i.e., January 28, 2026, Defendants have never responded to this discovery and has never paid the sanctions. (*Id.*, ¶ 11.) Defendants have not participated in

discovery in this case and have not appeared at any Court hearing since June 20, 2024. (*Id.*, ¶ 14.)

Based on the foregoing, with regards to discovery, the evidence indicates a failure to respond to written discovery requests, and to comply with the Court's order for discovery. While these acts constitute a misuse of the discovery process, the Court finds these circumstances do not warrant terminating sanctions as a first measure without attempts at a less severe alternative.

To the extent that Defendants have failed and refused to appear at six Court appearances, five of which were Orders to Show Cause as to Defendants, this does not constitute a misuse of the discovery process or other failure to obey a court order to provide discovery responses. Although this might support that a lesser sanction would be ineffective, the Court declines to impose a termination sanction at this juncture. The motion for a terminating sanction is DENIED, without prejudice.

The Court ORDERS Defendants to comply with the Court's June 5, 2025 order for discovery, and to provide verified responses without objections, as well as pay monetary sanctions as ordered therein within 30 days.

Monetary Sanctions

The Court may impose a monetary sanction under Code of Civil Procedure sections 2030.290(c), 2031.300(c)

The Court may also impose a monetary sanction against any party or attorney, or both, who has engaged in a misuse of the discovery process, unless it finds that the one subject to sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc. § 2023.030(a).)

As stated above, Defendants have engaged in the misuse of the discovery process by failing respond to an authorized method of discovery and by failing to comply with the Court's June 5, 2026, Order. **The Court GRANTS a monetary sanction in the amount of \$1,560 against Defendants, Right Time Transport, LLC and Andy Tran, jointly and severally, to be paid within 30 days.** (Schulman Decl., ¶¶ 15-25.)

The Court notes that Defendants have not been represented by counsel since their prior counsel was relieved as counsel of record on or about June 20, 2024.

Defendant, Right Time Transport, LLC, is advised that it cannot represent itself. (*Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284 n.5.) Defendant, Right Time Transport, LLC must obtain representation or risk forfeiting important rights through nonrepresentation. (*Ibid.*) As Defendant, Right Time Transport, LLC must be represented by counsel, Defendant, Right Time Transport LLC is ordered to obtain counsel, and file evidence thereof, with the court within 30 days of the notice.

Additionally, the Court sets an **Order to Show Cause re: status of representation for Defendants, Right Time Transport, LLC and Anh ("Andy") Tran on October 1, 2026 at 10:30 am in Department C34.**

All parties are ORDERED to appear. As to Defendant, Right Time Transport, LLC, a representative or its new counsel is **ORDERED** to appear.

The Court orders clerk to give notice.